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CHAPTER 20

TRANSPARENCY

ARTICLE 20.1

Objective

- 1 Recognising the impact which their respective regulatory environment may have on trade and investment between them, the Parties aim to provide a predictable regulatory environment and efficient procedures for economic operators, especially SMEs.
- 2 The Parties, reaffirming their respective commitments under the WTO Agreement, hereby lay down clarifications and improved arrangements for transparency, consultation and better administration of measures of general application.

ARTICLE 20.2

Definitions

For the purposes of this Chapter:

- (a) “administrative decision” means a decision or action with a legal effect that applies to a specific person, good or service in an individual case, and covers the failure to take an administrative decision as provided for in the Party's domestic law and legal system; and
- (b) “measure of general application” means laws, regulations, judicial decisions, procedures and administrative rulings of general application pertaining to any matter covered by this Agreement.

ARTICLE 20.3

Publication

Each Party shall ensure that a measure of general application with respect to any matter covered by this Agreement:

- (a) is promptly published via officially designated media where feasible, electronic means, or otherwise made available in such a manner as to enable any person to become acquainted with them;

- (b) provides an explanation of the objective of, and rationale for, the measure; and
- (c) allows for sufficient time to the extent possible between publication and entry into force of laws and regulations, except where it is not possible on grounds of urgency.

This provision does not apply to judicial decisions and administrative rulings.

ARTICLE 20.4

Enquiries

- 1 Each Party shall establish or maintain appropriate mechanisms, within its available resources, for responding to enquiries from any person regarding any laws or regulations, with respect to any matter covered by this Agreement.
2. Upon request of a Party, the other Party shall promptly, to the extent practicable, provide information and respond to questions pertaining to any law or regulation whether in force or planned, with respect to any matter covered by this Agreement, unless a specific mechanism is established under another Chapter of this Agreement.

ARTICLE 20.5

Administration of measures of general application

- 1 Each Party shall administer all measures of general application with respect to any matter covered by this Agreement in an objective, impartial, and reasonable manner, taking into account its laws and regulations.
2. Each Party, in applying such measures to particular persons, goods or services of the other Party in specific cases shall:
 - (a) endeavour to provide persons who are directly affected by administrative proceedings, with reasonable notice, in accordance with its laws and regulations, when proceedings are initiated, including a description of the nature of the proceedings, a statement of the legal authority under which the proceedings are initiated and a general description of any issues in controversy; and
 - (b) afford such persons a reasonable opportunity to present facts and arguments in support of their positions prior to any final administrative decision in so far as time, the nature of the proceedings and the public interest permit.

ARTICLE 20.6

Review and appeal

- 1 Each Party shall in accordance with its laws and regulations, establish or maintain judicial, arbitral or administrative tribunals or procedures for the purpose of the prompt review and, where warranted, correction of administrative decision with respect to any matter covered by this Agreement. Each Party shall ensure that its procedures for appeal or review are carried out in a non-discriminatory and impartial manner by its tribunals. Those tribunals shall be impartial and independent of the authority entrusted with administrative enforcement and shall not have any interest in the outcome of the matter.
- 2 Each Party shall ensure that the parties to the proceedings in paragraph 1 are provided with the right to:
 - (a) a reasonable opportunity to support or defend their respective positions; and
 - (b) a decision based on the evidence and submissions of record or, where required by its law, the record compiled by the administrative authority.
3. Each Party shall ensure that the decision in paragraph 2 shall, subject to appeal or further review as provided for in its law, be implemented by the authority entrusted with administrative enforcement powers.

ARTICLE 20.7

Relation to other chapters

The provisions set out in this Chapter supplement the specific rules set out in other Chapters of this Agreement.